

India and the Emerging Cyber Diplomacy Landscape

Executive Summary

Cyberspace has become a domain of strategic competition between states. Cyber operations can support espionage, influence, coercion, disruption and criminal activity while creating consequences that extend into diplomacy, national security and international stability.

India has recognised this shift institutionally. The Ministry of External Affairs maintains a **Cyber Diplomacy Division** responsible for international cyber issues, including bilateral and multilateral engagement.

The central challenge is no longer simply protecting national networks. States must increasingly determine **what behaviour is acceptable in cyberspace, how existing international law applies, how responsibility should be established, and how countries can cooperate when infrastructure, evidence and attackers cross borders.**

India's approach has broadly supported a rules-based and multilateral framework while emphasising practical cooperation, capacity building, protection of critical infrastructure and improved mechanisms for information sharing. India's participation in the UN Open-Ended Working Group (OEWG), cybercrime negotiations and bilateral cyber dialogues illustrates this approach.

1. Cyber Norms and Responsible State Behaviour

Cyber norms are intended to establish expectations for how states should behave when using ICTs. They do not necessarily create new treaties; instead, they seek to reduce uncertainty, miscalculation and escalation.

The UN framework has developed around three interconnected elements:

international law + voluntary norms of responsible behaviour + confidence-building measures/ capacity building.

The UN OEWG process reaffirmed that implementation of the framework for responsible state behaviour is fundamental to addressing ICT-related threats.

India has supported this approach. In its OEWG interventions, India described the existing voluntary norms as important for reducing risks to international peace and security, while arguing that norms need to be supported by practical mechanisms for cooperation, information sharing, trust building and critical-infrastructure protection.

Why this matters technically

A cybersecurity professional often asks:

“Can this attack be detected and stopped?”

A cyber-diplomacy practitioner must additionally ask:

“What does this activity mean between states, and what behaviour should it trigger?”

For example, targeting another country's critical infrastructure can move an incident from a purely technical problem into a question of international security.

2. International Law and the Attribution Problem

One of the most difficult issues in cyber diplomacy is **attribution**.

Identifying the machine used in an intrusion is relatively different from establishing who is legally or politically responsible for the operation. Attackers can use compromised infrastructure, proxies, criminal groups, rented infrastructure and third-country systems.

India's UN position has explicitly recognised this difficulty. India has stated that attribution of cyber activity requires careful assessment of whether conduct by individuals, entities or non-state actors can legally be attributed to a state, and that states should act reasonably when drawing conclusions from available facts.

The NATO CCDCOE's work similarly highlights attribution as both a technical and political problem. Attribution decisions can depend on intelligence capabilities, forensic evidence, allied information sharing and the intended political consequences of making an operation public.

This creates a fundamental strategic dilemma:

insufficient attribution → weak response

while

premature attribution → risk of diplomatic escalation or wrongful accusation.

The appropriate model is therefore **confidence-based attribution**: technical indicators, intelligence, geopolitical context, behavioural patterns and allied information should be evaluated together.

The Tallinn Manual process is particularly relevant here. It is not binding law and does not represent NATO or any individual state's position, but it provides influential expert analysis of how existing international law applies to cyber operations.

3. Cybercrime as an International Cooperation Problem

Cybercrime differs from state-sponsored cyber operations, but the two increasingly overlap.

Criminal groups may operate across jurisdictions, rent infrastructure from one country, target victims in another and use services hosted somewhere else entirely. Cryptocurrency, bulletproof hosting, anonymisation services and compromised infrastructure further complicate investigation.

International cooperation is therefore essential.

On **24 December 2024**, the UN General Assembly adopted the **United Nations Convention against Cybercrime**, establishing a multilateral framework intended to strengthen cooperation against cybercrime and facilitate electronic-evidence sharing.

As of September 2026, however, the Convention is **not yet in force**; the UN treaty status records three parties and 82 signatories, with entry into force requiring 40 instruments of ratification, acceptance, approval or accession.

Strategic significance for India

For India, international cybercrime cooperation matters because attribution, prosecution and evidence collection often require access to foreign infrastructure and foreign service providers.

India has consistently pushed for practical cross-border cooperation, including:

- exchange of cyber-threat information;
- cooperation between law-enforcement agencies;
- digital-forensics cooperation;
- protection of critical infrastructure;
- mechanisms for rapid information exchange.

India made these priorities explicit during the UN OEWG discussions.

4. Critical Infrastructure and Strategic Stability

The consequences of a cyberattack become significantly more serious when critical infrastructure is targeted.

Energy, telecommunications, financial systems, transportation, healthcare, government networks and other ICT-dependent services can have national-level consequences.

India has argued in UN discussions that states should refrain from targeting critical infrastructure and should recognise the critical and transnational nature of interconnected infrastructure. It has also supported joint exercises between national CERTs and greater information sharing.

This creates an important distinction:

The technical target may be infrastructure, but the strategic target may be state resilience.

An attack on an electricity provider, financial institution or government network can produce economic disruption, public uncertainty and political pressure even without a conventional military confrontation.

India's domestic architecture reflects this concern. CERT-In serves as the national agency for responding to cyber incidents, while NCIIPC works on protecting critical information infrastructure.

5. Diplomatic Consequences of Major Cyber Incidents

Cyber incidents can affect diplomacy in several ways.

Espionage

Compromise of government or diplomatic networks can expose negotiations, strategic assessments and sensitive communications.

Consequence: loss of diplomatic advantage.

Disruption

DDoS, ransomware or destructive attacks can interrupt government services and communications.

Consequence: operational paralysis and political pressure.

Influence

Compromised accounts, manipulated documents or fabricated communications can be used to create false narratives.

Consequence: diplomatic confusion and reputational damage.

Escalation

A major cyber incident attributed to another state can generate diplomatic protests, sanctions, legal action, countermeasures or broader strategic confrontation.

Consequence: cyber activity becomes part of interstate relations.

The crucial point is that **technical severity and diplomatic severity are not necessarily the same**.

A relatively small intrusion against a foreign ministry during a sensitive negotiation may be strategically more significant than a much larger but politically irrelevant cybercrime incident.

6. India's Position and Role in Multilateral Cyber Discussions

India has become an increasingly active participant in international cyber governance.

MEA's 2024 Annual Report records India's participation in:

- the UN OEWG on ICT security;
- negotiations for the UN cybercrime convention;

- the Global Digital Compact process;
- bilateral cyber dialogues;
- regional cyber-policy engagements.

India has also established or expanded cyber dialogues with countries and regions including ASEAN, Italy and Estonia, reflecting an effort to understand different approaches to cyber governance, resilience, data protection and international cyber policy.

India's distinctive contribution

India's position can broadly be characterised as **pragmatic multilateralism**.

Rather than treating cyber diplomacy purely as a legal debate, India has repeatedly emphasised:

capacity building + cooperation + critical infrastructure protection + information sharing + practical implementation.

India also proposed a **Global Cyber Security Cooperation Portal**, intended to improve international cooperation and help countries strengthen their cyber capabilities. MEA identified this initiative as a priority during India's engagement with the UN OEWG.

During the final 2025 OEWG session, India welcomed the move toward a **permanent global mechanism**, supported continued discussion of international law and emerging threats, and highlighted the establishment of the **Global ICT Security Cooperation and Capacity Building Portal** as a significant outcome, particularly for the Global South.

This is strategically important because cyber capacity is highly unequal. A global cyber framework is difficult to implement if many states lack the technical capability to detect, investigate or respond to malicious activity.

7. Where Technical Cybersecurity Meets Diplomacy

For a cybersecurity professional, cyber diplomacy becomes particularly relevant at the boundary between **technical evidence and political decision-making**.

Consider a hypothetical operation against an Indian government network:

Technical layer:

Malware → command-and-control infrastructure → compromised credentials → data exfiltration.

Intelligence layer:

Infrastructure overlaps with a known threat actor → targeting pattern matches previous activity → operation coincides with a sensitive geopolitical event.

Policy layer:

Evidence is assessed for attribution → diplomatic options are considered → India coordinates with partners → possible public or private response is evaluated.

This illustrates why cyber diplomacy needs people who can understand both sides.

A purely technical analyst may identify the intrusion.

A purely diplomatic analyst may understand the political consequences.

A strong cyber-diplomacy professional can connect:

technical evidence → threat actor → state interest → legal framework → geopolitical consequence → policy response.

That is the core skill intersection.

8. India's Emerging Priorities

Based on India's multilateral positions and institutional activity, several priorities are likely to remain important.

1. Stronger implementation of existing norms

The challenge is moving from agreeing on norms to determining how states actually implement them.

2. Better attribution mechanisms

States need stronger technical, legal and intelligence mechanisms for assessing responsibility without creating unnecessary escalation.

3. Critical-infrastructure protection

Cross-border dependencies mean that national infrastructure protection increasingly requires international cooperation.

4. Cybercrime cooperation

Digital evidence frequently crosses jurisdictions, making rapid law-enforcement cooperation essential.

5. Capacity building

Developing countries need technical capabilities, institutions, trained personnel and incident-response capacity to participate meaningfully in cyber governance.

6. Emerging technologies

AI-enabled cyber operations, autonomous systems, increasingly automated exploitation and other emerging technologies are creating issues that existing frameworks may not fully anticipate. India specifically called for continued discussion of emerging threats, including AI-powered attacks, during the final OEWG process.

Conclusion

India's emerging cyber-diplomacy posture reflects a simple strategic reality:

Cyberspace is no longer only an engineering domain; it is an arena of international competition, cooperation and statecraft.

The central challenges are not limited to defending networks. States must establish expectations for responsible behaviour, interpret international law, cooperate against cybercrime, protect critical infrastructure, investigate incidents and make difficult attribution decisions.

India's role is becoming increasingly significant because it combines a large digital economy, expanding cyber capabilities, Global South interests and an active role in multilateral institutions.

For a cybersecurity professional, the most valuable perspective is therefore not to attempt to become a foreign-policy specialist overnight. It is to understand how technical events create **strategic consequences**.

The capability to translate:

"I found the intrusion"

into

"I understand what it means for the state, what evidence supports attribution, what international rules are relevant, and what response options exist"

is precisely where cybersecurity expertise becomes **cyber-diplomatic capability**.

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